EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

DECISION

This version was rectified on 20 November 2017 under Rule 81 of the Rules of Court.

Application no. 36298/12
Giorgi OGBAIDZE and others
against Georgia

The European Court of Human Rights (Fifth Section), sitting on 19 September 2017 as a Committee composed of:

Síofra O'Leary, *President,*
Nona Tsotsoria,
Lətif Hüseynov, *judges,*

and Anne-Marie Dougin, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 8 June 2012,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

1. A list of the applicants is set out in the appendix. They are all Georgian nationals, live in Tbilisi and were represented before the Court by Mr N. Kvaratskhelia and Ms T. Gabiani, lawyers practising in Georgia.

2. The Georgian Government ("the Government") were represented by their Acting Agent, Ms Sh. Mezurnishvili, of the Ministry of Justice.

3. The application concerned a dispersal of a political protest rally by the special police units on 26 May 2011. All eleven applicants claimed to have been ill-treated by the police on that day and further complained about the absence of an effective criminal investigation in that regard, in breach of Articles 3 and 11 of the Convention.

4. On 3 September 2015 notice of the application was given to the Government, who submitted, on 3 May 2016, a declaration containing proposals for settling the dispute with applicants nos. 1-3, 5-9 and 11 and

observations on the admissibility and merits of the complaints lodged by applicants nos. 4 and 10.

A. Friendly settlement proposals submitted by the Government

5. The Government acknowledged a violation of Article 3 of the Convention, under its substantive limb, in relation to applicants nos. 2-3, 5-9 and 11 (Mr L. Ogbaidze, Mr N. Samkharadze, Mr P. Abuladze, Ms M. Gujejiani, Ms D. Gabunia, Mr I. Tsaava, Mr K. Bolkvadze and Ms Z. Mikatadze) on account of the police abuses committed against them on 26 May 2011. The Government further acknowledged a violation of Article 11 of the Convention in relation to the above-mentioned eight applicants and, additionally, applicant no. 1 (Mr G. Ogbaidze).

6. In their declaration, the Government specifically emphasised that the relevant authorities had complied with their procedural obligations under Article 3 of the Convention given that a criminal investigation conducted at the domestic level had led to the elucidation of all relevant facts and the criminal prosecution of the former high-rank officers of the Ministry of the Interior, including the former Minister himself, for their role in the violent dispersal of the protest rally on 26 May 2011.

7. In addition, the Government undertook to pay the following amounts:

– EUR 3,500 (three thousand five hundred euros) to applicants nos. 2, 3, 6, 7 and 9 each (Mr L. Ogbaidze, Mr N. Samkharadze, Ms M. Gujejiani, Ms D. Gabunia and Mr K. Bolkvadze);

– EUR 2,500 (two thousand five hundred euros) to applicant no. 5 (Mr P. Abuladze);

– EUR 2,000 (two thousand euros) to applicants nos. 1, 8 and 11 each[1] (Mr G. Ogbaidze, Mr I. Tsaava and Ms Z. Mikatadze).

8. The Government noted that the above-mentioned amounts would cover any pecuniary and non-pecuniary damage as well as costs and expenses, and would be converted into the respondent State's national currency at the rate applicable on the date of payment and be free of any taxes that might be chargeable to the applicants. They will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay these sums within the said three-month period, the Government undertook to pay simple interest on them, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment shall constitute the final resolution of the case.

[1] Rectified on 20 November 2017: the word "each" was added.

B. Partial observations submitted by the Government

9. In their observations on the admissibility and merits of the complaints lodged by applicants nos. 4 and 10 (Ms M. Maziashvili and Mr A. Tediashvili), the Government objected that, unlike the other nine applicants, these two applicants had not submitted any proof, either at the domestic level or in the proceedings before the Court, that they had in actual fact taken part in the protest rally on 26 May 2011. Given the absence of proof regarding their attendance at that public gathering, the two applicants in question could not obviously claim to have been victims of the police abuses committed on that day. The Government thus claimed that the two applicants' complaints under Articles 3 and 11 of the Convention were manifestly ill-founded.

C. The applicants' reply to the Government's submissions

10. On 11 May 2016 the Government's submissions were transmitted to the applicants, who were invited to submit, as appropriate, comments on the friendly settlement proposals and observations in reply by 22 June 2016. No response followed.

11. By a registered letter of 7 July 2016, which was served on their representatives on 17 July 2016, the Court warned the applicants that their failure to reply to the Government's submissions might result in the application being struck out in its entirety under Article 37 § 1 (a) of the Convention.

12. By a declaration dated 17 March 2017, applicants nos. 1-3, 5-9 and 11 informed the Court that they were ready to accept the proposals made by the Government on 3 May 2016 (see paragraphs 4-8 above) and agreed to waive any further claims against Georgia in respect of the facts giving rise to the application.

13. As to applicants nos. 4 and 10, despite the Court's strike-out warning of 7 July 2016 (see paragraph 11 above), they have not replied to the Government's observations on the admissibility and merits of the relevant part of the application (see paragraph 9 above) up to date.

THE LAW

14. In the light of the above circumstances, the Court considers that, as regards the complaints lodged by applicants nos. 1-3, 5-9 and 11 (Mr G. Ogbaidze, Mr L. Ogbaidze, Mr N. Samkharadze, Mr P. Abuladze, Ms M. Gujejiani, Ms D. Gabunia, Mr I. Tsaava, Mr K. Bolkvadze and Ms Z. Mikatadze), the matter can be considered to

have been resolved within the meaning of Article 37 § 1 (b) of the Convention.

15. As regards applicants nos. 4 and 10 (Ms M. Maziashvili and Mr A. Tediashvili), the Court considers that, in the light of the relevant circumstances, these two applicants can be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention.

16. Furthermore, in accordance with Article 37 § 1 *in fine* of the Convention, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case. Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 12 October 2017.

Anne-Marie Dougin
Acting Deputy Registrar

Síofra O'Leary
President

ANNEX

1. Mr Giorgi OGBAIDZE (applicant no. 1) was born on 19 January 1981.

2. Mr Levani OGBAIDZE (applicant no. 2) was born on 6 April 1986[1].

3. Mr Nika SAMKHARADZE (applicant no. 3) was born on 16 November 1989.

4. Ms Mariam MAZIASHVILI (applicant no. 4) was born on 7 January 1994.

5. Mr Paata ABULADZE (applicant no. 5) was born on 14 December 1967.

6. Ms Mzia GUJEJIANI (applicant no. 6) was born on 1 May 1948.

7. Ms Darejan GABUNIA (applicant no. 7) was born on 18 July 1955.

8. Mr Irakli TSAAVA (applicant no. 8) was born on 11 January 1988.

9. Mr Kakha BOLKVADZE (applicant no. 9) was born on 28 June 1963.

10. Mr Avtandil TEDIASHVILI (applicant no. 10) was born on 20 October 1983.

11. Ms Zaira MIKATADZE (applicant no. 11) was born on 19 May 1969.

[1] Rectified on 20 November 2017: the date previously stated “6 June 1986”.